

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3407

By: Patzkowsky of the House

and

7 **Wingard** of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to property; creating right to sell,
12 salvage, or remove manufactured home and its contents
13 for certain real property owners; requiring written
14 notice to be sent via certified mail; establishing
15 requirements of the contents of the written notice;
16 providing for codification; and providing an
17 effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 690 of Title 60, unless there is
21 created a duplication in numbering, reads as follows:

22 In the absence of any other agreement between the real property
23 owner and the owner of a manufactured home, any person, firm, or
24 corporation that allows an individual to use or occupy real property
 in order to utilize a manufactured home shall have the right to

1 sell, salvage, or remove the manufactured home and its contents if
2 the owner of the manufactured home has failed to contact the real
3 property owner or to provide payment for the use of the real
4 property for ninety (90) days; provided, however, that prior to
5 exercising such right, the real property owner shall:

6 1. Within thirty (30) days after the failure of the
7 manufactured homeowner to make payment or otherwise contact the real
8 property owner, send by certified mail, return receipt requested,
9 written notice to all recorded lienholders and to the last-known
10 address of the manufactured home owner stating the intent of the
11 real property owner to exercise the right to sell, salvage, or
12 remove the manufactured home and its contents if payment for use and
13 occupying the real property is not made. The written notice shall
14 include a description sufficient to identify the manufactured home
15 that is subject of the notice, including, if available, the
16 manufacturer's serial number, vehicle identification number (VIN),
17 title number, lot number, or other identifying characteristics, and
18 the physical location of the manufactured home;

19 2. If, thirty (30) days after the mailing of the first notice,
20 payment or contact has not been made, send a second written notice
21 by certified mail, return receipt requested, to all recorded
22 lienholders and to the last-known address of the manufactured home
23 owner restating the intent to exercise such right and including the
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1 same identifying information required by paragraph 1 of this
2 section; and

3 3. Upon the expiration of thirty (30) days after mailing the
4 second notice, if payment or contact has not been made, proceed to
5 exercise the right to sell, salvage, or remove the manufactured home
6 and its contents in accordance with this act.

7 SECTION 2. This act shall become effective November 1, 2026.

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9 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
10 OVERSIGHT, dated 02/26/2026 - DO PASS, As Amended and Coauthored.
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